

Karnali Academy of Health Sciences Act, 2011

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 12

Karnali Academy of Health Sciences Act, 2068

Certification and Publication Date

2068.7.3

Amending Acts

1. Act to Amend Some Nepal Acts, 2072 2072.11.13
2. Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075 2075.11.19
3. Act to Amend Some Nepal Acts, 2082 2082.04.14

Act No. 9 of the year 2068

An Act Made to Provide for the Karnali Academy of Health Sciences

Preamble: Whereas, it is desirable to make legal provisions regarding the establishment and operation of the Karnali Academy of Health Sciences to provide easy access to health services in the backward region, to produce necessary skilled manpower by making provisions for high-level studies and research in the field of health sciences, and to provide accessible and quality health services to the general public,

The Constituent Assembly, in its capacity as the Legislature-Parliament pursuant to Article 83 of the Interim Constitution of Nepal, 2063, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Karnali Academy of Health Sciences Act, 2068."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Hospital" means the hospital established pursuant to Section 16.

(b) "Hospital Management Committee" means the Hospital Management Committee formed pursuant to Section 17.

(c) "Vice-Chancellor" means the Vice-Chancellor pursuant to Section 20.

(d) "Executive Council" means the Executive Council formed pursuant to Section 11.

(e) "Chancellor" means the Chancellor pursuant to Section 18.

(f) "Selection Committee" means the Selection Committee formed pursuant to Section 13.

(g) "Dean" means the Dean pursuant to Section 23.

(h) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act.

(i) "Director" means the Director pursuant to Section 24. Amended by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075.(j) "Backward Region" means the districts of Humla, Dolpa, Mugu, Kalikot, Jumla, Jajarkot, Bajura, Bajhang and Achham.

(k) "Academy" means the Karnali Academy of Health Sciences established pursuant to Section 3.

(l) "Academic Council" means the Academic Council formed pursuant to Section 9.

(m) "Registrar" means the Registrar pursuant to Section 22.

(n) "Teacher" means a person appointed to teach and conduct research at the Academy.

(o) "Dean of Academic Affairs" means the Dean of Academic Affairs pursuant to Section 21.

(p) "Educational Institution" means the educational institution established pursuant to Section 15.

(q) "Assembly" means the Assembly formed pursuant to Section 7.

(r) "Pro-Chancellor" means the Pro-Chancellor pursuant to Section 19. Chapter-2

Establishment, Nature, and Functions, Duties and Powers of the Academy

3.

Establishment of Academy: (1) The Karnali Academy of Health Sciences is established for the purpose of, among others, providing easy access to health services in the backward region. (2) The principal office of the Academy shall be located in Jumla. (3) The Academy shall be called the "Karnali Academy of Health Sciences" in the English language. 4. Academy to be an Autonomous Institution: (1) The Academy shall be an autonomous institution with perpetual succession. (2) The Academy shall have its own separate seal for all its activities. (3) The Academy may, like an individual, acquire, use, sell or otherwise dispose of movable and immovable property. (4) The Academy may, like an individual, sue or be sued in its own name. (5) The Academy may, like an individual, enter into contracts, exercise rights under contracts, and discharge liabilities. 5. Nature of the Academy: The Academy shall have the following organizations, and their collective form shall constitute the nature of the Academy:- (a) Assembly, (b) Academic Council, (c) Executive Council, (d) Selection Committee, (e) Faculty Board, (f) Faculty, (g) Research Centre, (h) Educational Institution, (i) Hospital, (j) Other bodies as prescribed. 6. Functions, Duties and Powers of the Academy: (1) The functions, duties and powers of the Academy shall be as follows:- (a) To conduct study, teaching, training and research on various subjects related to health in the backward region, (b) To provide quality and easily accessible health services, (c) To enter into agreements with domestic and foreign universities, educational institutions and hospitals to conduct study, teaching, training and research programs on various health-related subjects, (d) To produce skilled manpower required for quality health services, (e) To coordinate with domestic or foreign universities, educational institutions or hospitals to strengthen the various programs operated by the Academy and enhance the quality of such programs, (f) To establish, expand and strengthen relations with domestic and foreign universities, academies and international organizations related to health and exchange mutual cooperation, (g) To organize and cause to organize workshops, conferences, seminars, interactions, health camps, research on various health-related subjects, (h) To publish and cause to publish various books, pamphlets, bulletins, awareness posters related to health, (i) To do and cause to do other works as prescribed. (2) The functions, duties and powers of the Academy shall be exercised and fulfilled through the organizations of the Academy. Chapter-3 Formation and Functions, Duties and Powers of the Assembly 7.

Formation of Assembly: (1) There shall be an Assembly as the supreme body of the Academy. (2) The

Assembly shall be formed as follows:- (a) Chancellor - Chairperson (b) Pro-Chancellor - Vice-Chairperson (c) Member, National Planning Commission (looking after the health sector) - Member (d) Vice-Chancellor - Member (e) Two persons nominated by the Assembly on the recommendation of the Executive Council from among the Vice-Chancellors of universities and academies providing higher education in health sciences - Member (f) Secretary, Ministry of Health and Population - Member (g) Secretary, Ministry of Finance - Member (h) Amended by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075. Secretary, Ministry of Education, Science and Technology - Member (i) Dean of Academic Affairs - Member (j) One person nominated by the Assembly from among the Deans - Member (k) Director - Member (l) Deleted by the Act to Amend Some Nepal Acts, 2072.? (m) Two persons, including at least one woman, nominated by the Executive Council on the recommendation of the Academic Council from among the teachers - Member (n) One person nominated by the Assembly on the recommendation of the Executive Council from among the heads of educational institutions - Member (o) Four persons, including at least two women, nominated by the Assembly on the recommendation of the Executive Council, ensuring representation from Dalit, indigenous/nationalities and backward classes - Member (p) One person nominated by the Assembly on the recommendation of the Executive Council from among donors - Member (q) One person nominated by the Assembly from among the employees working at the Academy - Member (r) Two persons, including at least one woman, nominated by the Assembly on the recommendation of the Executive Council from among persons who have made significant contributions to the development of the backward region - Member (s) Registrar - Member-Secretary (3) The term of office of the nominated members under sub-section (2) shall be three years. (4) If the office of a nominated member falls vacant for any reason, another person shall be nominated for the remaining period through the same process by which the original appointment was made. (5) The procedure for meetings of the Assembly shall be as prescribed. 8.

Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:- (a) To approve the policy, plan and programs of the Academy, (b) To approve the annual budget of the Academy, (c) To approve the rules of the Academy, (d) To award scholarships, degrees, certificates, medals and prizes on behalf of the Academy, (e) To award honorary degrees as prescribed, (f) To provide guidance and necessary directives to the various bodies of the Academy under its purview, (g) To provide necessary suggestions to the Government of Nepal in the process of formulating national health and education policy, (h) To approve the annual report of the Academy, (i) To discuss and approve the audit report of the Academy, (j) To make or cause to make necessary arrangements for the establishment of educational institutions, (k) To do and cause to do other works as prescribed. Chapter-4 Formation and Functions, Duties and Powers of the Academic Council 9. Formation of Academic Council: (1) There shall be an Academic Council as the body to systematize and regulate the educational, academic and research activities of the Academy. (2) The Academic Council shall be formed as follows:- (a) Dean of Academic Affairs - Chairperson (b) Five persons nominated by the Assembly on the recommendation of the Executive Council from among the chairpersons of various subject committees of the Academy - Member (c) Director - Member (d) Heads of bodies related to curriculum and examination of the Academy - Member (e) Two persons, including at least one woman, nominated by the Assembly on the recommendation of the Executive Council from among the teachers - Member (f) Two persons, including at least one woman, nominated by the Assembly on the recommendation of the Executive Council from among persons who have made outstanding contributions in the health sector - Member (g) Dean nominated by the Vice-Chancellor from among the Deans - Member-Secretary (3) The term of office of the nominated members under sub-section (2) shall be three years. (4) If the office of a nominated member falls vacant for any reason, another person shall be

nominated for the remaining period through the same process by which the original appointment was made. (5) The procedure for meetings of the Academic Council shall be as prescribed. 10.

Functions, Duties and Powers of the Academic Council: The functions, duties and powers of the Academic Council shall be as follows:- (a) To formulate necessary policies, plans and programs to systematize and regulate the educational, academic and research activities of the Academy and submit them to the Assembly for approval, (b) To conduct or cause to conduct study and research programs to provide education in various subjects and levels related to health sciences, (c) To determine the qualifications of teachers required for the Academy, (d) To determine the standards of study, research, training and training programs operated by the Academy and approve the curriculum, (e) To select students, (f) To determine examination standards, (g) To conduct examinations and publish results, (h) To recommend to the Assembly to award degrees to students who succeed in the study programs operated by the Academy, (i) To recommend to the Assembly to award honorary degrees, scholarships, medals and prizes on behalf of the Academy, (j) To prepare quality textbooks, (k) To evaluate the study, research, training and training programs operated by the Academy, (l) To determine fees for study, training and research, (m) To implement and monitor decisions related to the Academic Council approved by the Assembly, (n) To do other works as prescribed. Chapter-5 Formation and Functions, Duties and Powers of the Executive Council 11. Formation of Executive Council: (1) There shall be an Executive Council to function as the executive body of the Academy. (2) The Executive Council shall be formed as follows:- (a) Vice-Chancellor - Chairperson (b) Dean of Academic Affairs - Member (c) One person from among the Deans - Member (d) One person from among the heads of educational institutions who are members of the Assembly - Member (e) Director - Member (f) One person from among the teachers - Member (g) Registrar - Member-Secretary (3) The nomination of members under clauses (c), (d) and (f) of sub-section (1) shall be made by the Pro-Chancellor on the recommendation of the Vice-Chancellor. (4) The term of office of the nominated members under sub-section (2) shall be three years. (5) The procedure for meetings of the Executive Council shall be as prescribed. 12.

Functions, Duties and Powers of the Executive Council: The functions, duties and powers of the Executive Council shall be as follows:- (a) To implement and cause to implement the decisions and directives of the Assembly, (b) To prepare drafts of rules required for the Academy and submit them to the Assembly for approval, (c) To prepare the policy, plan, annual program, progress report, annual budget, audit report and other proposals of the Academy and submit them to the Assembly for approval, (d) To monitor and evaluate the activities carried out by subordinate bodies and give directives to such bodies as required, (e) Subject to the policy directions of the Assembly, to operate, manage and preserve the fund and movable and immovable property of the Academy, to sell them and to give them out on contract or lease: Provided that while selling immovable property received from the Government of Nepal, approval of the Government of Nepal shall be obtained. (f) To appoint and promote teachers and employees required for the Academy on the recommendation of the Selection Committee, (g) To accept various types of donations received by the Academy, (h) To do and cause to do other works as prescribed. Chapter-6 Formation and Functions, Duties and Powers of the Selection Committee 13. Formation of Selection Committee: (1) There shall be a Selection Committee to recommend for the appointment and promotion of teachers and employees of the Academy. (2) The Selection Committee shall consist of the following Chairperson and members:- (a) A person who has obtained at least a master's degree in health sciences and has worked in the health sector for ten years or has served as a special class officer or professor and fulfilled responsibilities - Chairperson (b) One person from among the teachers - Member (c) Registrar - Member-Secretary (3) The nomination of the Chairperson and member under clauses (a) and (b) of sub-section (2) shall be made by the Assembly. (4) The term of office of the Chairperson and nominated member of the Selection Committee shall be four years. (5) Other

functions, duties and powers of the Selection Committee shall be as prescribed. (6) The remuneration, facilities and other terms of service of the Chairperson of the Selection Committee and the facilities of the member shall be as prescribed. (7) The procedure for meetings of the Selection Committee shall be as prescribed. Chapter-7 Faculty Board, Educational Institution, Hospital and Other Bodies 14. Provision regarding Faculty Board, Faculty and Research Centre: (1) The Academy may establish a Faculty Board, Faculty and Research Centre. (2) The formation and functions, duties and powers of the Faculty Board, Faculty and Research Centre established pursuant to sub-section (1) shall be as prescribed.

15. Establishment and Operation of Educational Institution: (1) The Academy may establish educational institutions as needed with the objective of conducting study and research on various subjects related to health sciences. (2) The operation of the educational institution established pursuant to sub-section (1) shall be as prescribed. 16. Establishment and Operation of Hospital: (1) The Academy shall establish a hospital for conducting high-level study and research in the health sector and providing quality and accessible health services. (2) The Karnali Zonal Hospital which was established and operating according to the law in force at the time of commencement of this Act shall be deemed to have been established pursuant to sub-section (1). (3) The operation and management of the hospital shall be as prescribed. 17. Hospital Management Committee: (1) There shall be a Management Committee under the Academy for the hospital to operate and cause it to operate smoothly. (2) The formation and functions, duties and powers of the Hospital Management Committee shall be as prescribed. Chapter-8 Office Bearers, Teachers and Employees of the Academy 18. Chancellor: (1) The Prime Minister shall be the Chancellor of the Academy. (2) The Chancellor shall be the head of the Academy. 19. Pro-Chancellor: (1) The Minister or Minister of State for Health and Population shall be the Pro-Chancellor of the Academy. (2) The Pro-Chancellor may inspect and give directives to the Academy as required. 20. Vice-Chancellor: (1) The Vice-Chancellor shall be the chief office bearer working full-time at the Academy. (2) A committee consisting of the Pro-Chancellor as Chairperson and two other members of the Assembly shall be formed by the Chancellor to recommend for the appointment to the post of Vice-Chancellor, and the Chancellor shall appoint the Vice-Chancellor on the recommendation of that committee. (3) The term of office of the Vice-Chancellor shall be four years. (4) The functions, duties and powers, remuneration, facilities and other terms of service of the Vice-Chancellor shall be as prescribed. 21.

Dean of Academic Affairs: (1) The Pro-Chancellor shall appoint the Dean of Academic Affairs on the recommendation of the Vice-Chancellor for the supervision of the educational and academic work of the Academy. (2) The Dean of Academic Affairs shall be an office bearer working full-time at the Academy. (3) The term of office of the Dean of Academic Affairs shall be four years. (4) Other functions, duties and powers, remuneration, facilities and other terms of service of the Dean of Academic Affairs shall be as prescribed. 22. Registrar: (1) The Pro-Chancellor shall appoint the Registrar on the recommendation of the Vice-Chancellor for the supervision of financial and personnel administration related work of the Academy. (2) The Registrar shall be an office bearer working full-time at the Academy. (3) The term of office of the Registrar shall be four years. (4) Other functions, duties and powers, remuneration, facilities and other terms of service of the Registrar shall be as prescribed. 23. Dean: (1) The Vice-Chancellor shall appoint the Dean to work as the head of a faculty of the Academy. (2) The Dean shall be an office bearer working full-time at the Academy. (3) The term of office of the Dean shall be four years. (4) The functions, duties and powers, remuneration, facilities and other terms of service of the Dean shall be as prescribed. 24. Director: (1) The Vice-Chancellor shall appoint the Director on the recommendation of the Registrar to work as the administrative head of the hospital. (2) The term of office of the Director shall be four years. (3) The functions, duties and powers, remuneration, facilities and other terms of service of the Director shall be as prescribed. 25. Other Office Bearers: (1) There may be other office bearers in the Academy as prescribed. (2) The appointment,

functions, duties and powers, remuneration, facilities and terms of service of the office bearers under sub-section (1) shall be as prescribed. 26.

Power to Remove from Office: (1) If one-fourth of the current members of the Assembly submit a written application to the Chancellor stating that the Vice-Chancellor, Dean of Academic Affairs or Registrar has not fulfilled his/her official responsibilities or has not behaved in accordance with his/her office or has not honestly performed his/her duties, the Chancellor shall form a three-member investigation committee consisting of a member of the Assembly as Chairperson, another member, and the Secretary of the Ministry of Health and Population. (2) If the investigation committee under sub-section (1) recommends that the Vice-Chancellor, Dean of Academic Affairs or Registrar has not fulfilled his/her official responsibilities, has not worked honestly or has not performed his/her duties, and if such matter is passed by a meeting of the Assembly, the Chancellor shall remove such Vice-Chancellor, Dean of Academic Affairs or Registrar from his/her office. (3) After the formation of the investigation committee under sub-section (1), and until a decision is made by the Assembly under sub-section (2), such office bearer shall be automatically suspended from his/her office. (4) The provision regarding removal from office of other office bearers of the Academy, other than the Vice-Chancellor, Dean of Academic Affairs or Registrar, shall be as prescribed. (5) Before recommending the removal of an office bearer of the Academy under sub-section (2), the investigation committee shall give him/her an opportunity to present a defense against the allegation made against him/her. 27. **Teachers and Employees of the Academy:** (1) There shall be the required number of teachers and employees at the Academy. (2) The appointment of teachers and employees of the Academy shall be made as prescribed on the recommendation of the Selection Committee. (3) The functions, duties and powers, remuneration, facilities and other terms of service of the teachers and employees of the Academy shall be as prescribed. Chapter-9 Fund, Accounts and Audit of the Academy 28.

Fund of the Academy: (1) The Academy shall have a separate fund. (2) The fund under sub-section (1) shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received from educational fees and service charges, (c) Amount received from domestic or foreign individuals, associations, organizations or foreign governments in the form of grants or loans, (d) Amount received from other sources. (3) The Academy shall obtain the approval of the Government of Nepal before receiving any amount from a foreign individual, association, organization or government under clause (c) of sub-section (2). (4) The amount of the Academy's fund shall be deposited by opening an account in a commercial bank. (5) All expenses of the Academy shall be borne from the fund under sub-section (1). (6) The operation of the fund and accounts of the Academy shall be as prescribed. 29. **Accounts and Audit:** (1) The accounts of income and expenditure of the Academy shall be kept in accordance with the prevailing law. (2) The audit of the Academy shall be conducted by the Auditor General. Chapter-10 Miscellaneous 30. **Power not to Grant Affiliation:** The Academy shall not grant affiliation to any educational institution. 31. **To Work in Accordance with National Education and Health Policy:** The Academy shall work in accordance with the national education and health policy approved by the Government of Nepal. 32. **Provision regarding Reservation:** (1) While enrolling students at various levels up to bachelor's degree in each academic session, the Academy shall make provision for reservation of forty-five percent of seats for Nepali students who have permanent residence in the backward region and have passed the School Leaving Certificate examination or equivalent from a community school of that region. Amended by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075. (2) The Academy shall make provision for reservation as prescribed for enrolling Nepali students at the master's level who have permanent residence in the backward region, have passed the School Leaving Certificate examination or equivalent from a community school of that region, Added by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of

Nepal, 2075. and have obtained higher education from a higher secondary school or equivalent educational institution of that region. (3) In the seats reserved pursuant to sub-sections (1) and (2), priority shall be given to students from women, Dalit, indigenous/nationalities, Madhesi and backward classes of the backward region. (4) While making reservation pursuant to sub-section (1), students shall be selected through competition. 33.

Priority to be Given While Enrolling Students: Deleted by the Act to Amend Some Nepal Acts, 2082. While enrolling students at various levels, the Academy shall give priority to persons who have provided services for a prescribed period at health institutions in the backward region. 34. To Provide Scholarships: (1) The Academy shall provide full scholarships to indigent students in at least twenty percent of the total number of students enrolled in each academic session. Explanation: For the purpose of this section, "indigent" means students who have studied in government/community schools and passed the School Leaving Certificate Amended by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075. or equivalent, and who are recommended as indigent by the concerned Amended by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075. Rural Municipality/Municipality based on prescribed criteria. (2) Taking the twenty percent under sub-section (1) as one hundred percent, scholarships shall be provided only to students from women, Dalit, indigenous/nationalities, Madhesi and backward region in forty-five percent of those seats. (3) The Academy may provide partial scholarships to indigent students. (4) The basis for providing scholarships under sub-sections (1) and (2) shall be as prescribed. (5) Any body or organization may provide a scholarship to any student for study at the Academy. 35. To Work in a Designated Place: (1) A student who has studied under reservation or scholarship pursuant to this Act shall work in the backward region for a period prescribed by the Academy. (2) If a student studying on a scholarship provided by any body or organization is subject to a condition requiring him/her to work in a certain place for a certain period in return for receiving such scholarship, he/she shall work according to that condition; and if no condition is set, he/she shall work for the period under sub-section (1). (3) A student admitted on priority basis under Section 33 shall work in the backward region for a period prescribed by the Academy. (4) The Academy shall provide a permanent certificate of educational qualification to a student studying under reservation under sub-section (1) or (2) of Section 32 or priority or scholarship under Sections 33 and 34 only after such student has worked for the full period mentioned in sub-section (1), (2) or (3). (5) The Academy may make necessary arrangements to encourage students studying at the Academy, other than those studying under reservation, priority or scholarship under Sections 32, 33 and 34, to work at health institutions in the backward region after their studies. 36.

Annual Report: (1) The Academy shall submit an annual report of its activities carried out throughout the year to the Government of Nepal within three months of the end of each fiscal year. (2) The report under sub-section (1) shall include, among other things, a brief description of the activities carried out by the Academy throughout the year and the achievements of the Academy. 37. Delegation of Powers: (1) The Assembly may delegate some of the powers conferred on it under this Act to the Academic Council, Executive Council or Vice-Chancellor as required. (2) The Academic Council, Executive Council or Selection Committee may delegate some of the powers conferred on it under this Act to any office bearer of the Academy or any subordinate body as required. 38. Proceedings Not to be Invalidated: No act or proceeding of the Academy shall be invalidated merely by reason of any vacancy in the office of any office bearer or member of the Academy or any defect in the appointment or nomination of any office bearer or member of any organization of the Academy. 39. Power to Give Directions: The Government of Nepal may give necessary directions to the Academy in relation to its activities, and it shall be the duty of the Academy to

comply with such directions. 40. Contact with Government of Nepal: When contacting the Government of Nepal, the Academy shall do so through the Ministry of Health and Population. 41. Oath to be Taken: A person appointed to the office of office bearer of the Academy shall take an oath in the format as prescribed before assuming the duties of his/her office. 42. Employees May Remain in Academy: (1) Among the Nepal Health Service employees working at the Karnali Zonal Hospital, Jumla at the time of commencement of this Act, employees wishing to work at the Academy shall submit an application to the Ministry of Health and Population within six months from the date of commencement of the rules relating to employee service made under this Act. (2) If the Government of Nepal approves an employee applying under sub-section (1) to remain as an employee of the Academy, such employee shall be deemed to be an employee of the Academy. (3) The service period of an employee who remains in the Academy under sub-section (2) and worked in the health service shall be counted as service period of the Academy. 43. Power to Make Rules: The Academy may make necessary rules to implement the objectives of this Act. Provided that while making rules on matters that impose additional financial burden on the Government of Nepal, the approval of the Government of Nepal shall be obtained. 44.